

# State of Washington



## Advance Directive for Health Care

*This Document Contains:*

- Medical Power of Attorney
- Living Will

# Durable Power of Attorney for Health Care for

\_\_\_\_\_  
[My Name]

1. **Agent.** I choose \_\_\_\_\_ as my Agent with full authority to manage my health care.
2. **Alternate.** If \_\_\_\_\_ is unable or unwilling to act, I choose \_\_\_\_\_ as my Agent with full authority to manage my health care.
3. **My Rights.** I keep the right to make health care decisions for myself as long as I am capable.
4. **Durable.** My Agent can still use this power of attorney document to manage my affairs even if I become sick or injured and cannot make decisions for myself. This power of attorney shall not be affected by my disability.
5. **Start Date.** This power of attorney document is effective on the day I sign it.
6. **End Date.** This power of attorney document will end if I revoke it or when I die. If my spouse or domestic partner is my Agent, this power of attorney document will end if either of us files for divorce in court.
7. **Revocation.** I revoke any other power of attorney for health care documents I have signed in the past. I understand that I may revoke this power of attorney document at any time by giving written notice of revocation to my Agent.
8. **Powers.** My Agent shall have full power and authority to do anything as fully and effectively as I could do myself, including the power to make health care decisions and give informed consent to my health care, refuse and withdraw consent to my health care, employ and discharge my health care providers, apply for and consent to my admission to a medical, nursing, residential or other similar facility that is not a mental health treatment facility, serve as my personal representative for all purposes under the Health Insurance Portability and Accountability Act (HIPAA) of 1996, as amended, and to visit me at any hospital or other medical facility where I reside or receive treatment
9. **Mental Health Treatment.** My Agent is not authorized to arrange for my commitment to or placement in a mental health treatment facility. My Agent is not authorized to consent to electroconvulsive therapy, psychosurgery, or other psychiatric or mental health procedures that restrict physical freedom of movement.
10. **No Power to Agree to Pre-Dispute Binding Arbitration.** My agent does not have the power to agree to pre-dispute binding arbitration or any other process involving my person or property that limits my right to a jury, to sue for money, or to join a class action.

11. **Accounting.** My Agent shall keep accurate records of my financial affairs and show these records to me at my request.
12. **Nomination of Guardian.** I nominate my Agent as the guardian of my person for consideration by the court if guardianship proceedings become necessary.
13. **HIPAA Release.** I authorize my healthcare providers to release all information governed by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) to my Agent.

\_\_\_\_\_  
My Signature

\_\_\_\_\_  
Date

**Notarization (preferred)**

State of Washington

County of \_\_\_\_\_

I certify that I know or have satisfactory evidence that \_\_\_\_\_, is the person who appeared before me, signed above, and acknowledged that the signing was done freely and voluntarily for the purposes mentioned in this instrument.

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature of Notary

NOTARY PUBLIC for the State of Washington.

My commission expires \_\_\_\_\_.

**Statement of Witnesses (alternative)**

On \_\_\_\_\_, the declarer of this document signed it in my presence. I believe the declarer is able to make health care decisions, to understand this document, and to have signed it voluntarily.

- I am not related to the principal by blood, marriage, or state registered domestic partnership.
- I am not a home care provider for the principal nor do I provide care at an adult family home or long-term care facility in which the principal resides

**Witness 1**

**Witness 2**

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Address

\_\_\_\_\_  
Address

# Health Care Directive of

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[My Name]

I am of sound mind and body and voluntarily execute this health care directive. If I cannot make decisions for myself about life sustaining medical treatment, my relatives, friends, agents and medical providers should fully honor every part of this directive. If any part of this directive is invalid, the remainder should be honored. I revoke any health care directives I have signed in the past.

1. **Withhold or Withdraw Treatment.** If my attending physician diagnoses me with a **terminal condition**, or if two physicians determine that I am in a **permanent unconscious condition**, and if my physician(s) determine that life-sustaining treatment would only artificially prolong the process of dying, the following treatment should be withheld or withdrawn from me:  
(check all that apply)

- ☐ Artificial nutrition
- ☐ Artificial hydration
- ☐ Artificial respiration
- ☐ Cardiopulmonary Resuscitation (CPR), including artificial ventilation, heart regulating drugs, diuretics, stimulants, or any other treatment for heart failure
- ☐ Surgery to prolong my life or keep me alive
- ☐ Blood dialysis or filtration for lost kidney function
- ☐ Blood transfusion to replace lost or contaminated blood
- ☐ Medication used to prolong life, not for controlling pain
- ☐ Any other medical treatment used to prolong my life or keep me alive artificially

2. **Comfort Care and Pain Medication.** If I appear to be experiencing pain or discomfort, I want treatment and medications to make me comfortable, even if my medical providers believe it might unintentionally hasten my death.
3. **Health Care Institutions.** If I am admitted to a hospital or other medical institution that will not honor this directive due to religious or other beliefs: (1) my consent to admission is not implied consent to treatment, and (2) I want to be transferred as soon as possible to a hospital or other medical institution that will honor my directive.

My Name: \_\_\_\_\_

My Date of Birth: \_\_\_\_\_

4. **Changes and Revocation.** I understand that I can change the wording of this directive before I sign it. I also understand that I can revoke this directive at any time.
5. **Health Care Values:** The following wishes and preferences should guide all decisions made about my care:

My Name: \_\_\_\_\_

My Date of Birth: \_\_\_\_\_

\_\_\_\_\_  
My Signature

\_\_\_\_\_  
Date

**Notarization (preferred)**

State of Washington

County of \_\_\_\_\_

I certify that I know or have satisfactory evidence that \_\_\_\_\_, is the person who appeared before me, signed above, and acknowledged that the signing was done freely and voluntarily for the purposes mentioned in this instrument.

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature of Notary

NOTARY PUBLIC for the State of Washington.

My commission expires \_\_\_\_\_

**Statement of Witnesses (alternative)**

On \_\_\_\_\_, the declarer of this document signed it in my presence. I believe the declarer is able to make health care decisions, to understand this document, and to have signed it voluntarily.

- I am not related by blood or marriage to the declarer.
- I am not now entitled to receive any portion of the declarer's estate, either by will or by operation of law, or as a result of any claim against the declarer.
- I am not the declarer's attending physician or an employee of that physician or of a health facility in which the declarer is a patient.

**Witness 1**

**Witness 2**

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Address

\_\_\_\_\_  
Address

My Name: \_\_\_\_\_

My Date of Birth: \_\_\_\_\_

## Health Care Directive Contact Information

|                               |                                  |
|-------------------------------|----------------------------------|
| My name – first, middle, last |                                  |
|                               |                                  |
| My date of birth              | My primary care medical provider |
|                               |                                  |
| My phone number               | My email address                 |
|                               |                                  |
| My mailing address            |                                  |
|                               |                                  |

☐ I have a Durable Power of Attorney form that lets someone else (my “agent”) make health care decisions for me if I am not able.

|                                                                            |                          |
|----------------------------------------------------------------------------|--------------------------|
| My health care agent’s name                                                |                          |
|                                                                            |                          |
| My agent’s relationship to me (e.g. friend, partner, spouse, sister, etc.) |                          |
|                                                                            |                          |
| My agent’s phone number                                                    | My agent’s email address |
|                                                                            |                          |

|                                                                                      |                                    |
|--------------------------------------------------------------------------------------|------------------------------------|
| My alternate health care agent’s name                                                |                                    |
|                                                                                      |                                    |
| My alternate agent’s relationship to me (e.g. friend, partner, spouse, sister, etc.) |                                    |
|                                                                                      |                                    |
| My alternate agent’s phone number                                                    | My alternate agent’s email address |
|                                                                                      |                                    |

My Name: \_\_\_\_\_

My Date of Birth: \_\_\_\_\_